

GA.1 Owner-Builder Exemption Walkthrough

How Georgia's owner-builder exemption actually works — the statute that creates it, the 24-month rule that poisons it, and the trade-work carve-outs that come with it.

Before you use this document

This is a process reference, not legal advice. In Georgia the state minimum codes bind statewide, but permits and inspections are a local option — each county or city decides its own forms, fees, and enforcement, and some enforce nothing at all. Confirm every item with the office that will issue your permit before you rely on it. Statute text was read at the FindLaw O.C.G.A. mirror in August 2026 (stated currency March 28, 2024); statutes change.

THE SHORT VERSION

Georgia requires a licensed residential contractor for construction work whose total value exceeds **\$2,500** — one of the lowest licensing thresholds in the country. The same chapter carves you out of it: build on real property you own, intend the finished building solely for occupancy by you and your family (or your firm and its employees), do not offer it for sale or lease, and you may act as your own contractor at any project cost. There is no state affidavit to sign and no fee to pay for the exemption itself — but one sale of a self-built house inside 24 months takes it away for the next one.

O.C.G.A. § 43-41-17(h); § 43-41-2(9). The \$2,500 figure is the definition of "residential contractor" — work at or under it does not require licensure in the first place.

The exemption at a glance

Question	Georgia's answer
What is the \$2,500 threshold, then?	The point at which <i>contracting</i> requires a license. It governs the people you hire, not you.
Must you own the land, and live in it?	Both. Real property owned by you, and the building intended upon completion for use or occupancy solely by you and your family, firm, or corporation — not the general public, and not offered for sale or lease
What kills the exemption?	One prior sale or transfer of a structure you built without a licensed contractor, within the past 24 months — measured from the date that structure's certificate of occupancy issued
What do you sign, and who checks it?	The statute requires no affidavit. Many Georgia counties require their own notarized owner-builder affidavit as local practice — ask yours and record the answer below

THE EXEMPTION ITSELF — O.C.G.A. § 43-41-17(h)

The licensing chapter carves the owner out in one long sentence: *"Nothing in this chapter shall preclude any person from constructing a building or structure on real property owned by such person which is intended upon completion for use or occupancy solely by that person and his or her family, firm, or corporation and its employees, and not for use by the general public and not offered for sale or lease. In so doing, such person may act as his or her own contractor personally providing direct supervision and management of all work not performed by licensed contractors."*

The conditions — all of them, all the time

- (i) The building sits on **real property you own**.
- (ii) It is intended upon completion for use or occupancy **solely by you and your family, firm, or corporation and its employees** — and **not for use by the general public**.
- (iii) It is **not offered for sale or lease**.
- (iv) You **personally provide direct supervision and management** of all work not performed by licensed contractors.

Read condition (iv) closely — it is the working half of the exemption. You are not exempted from running the job; you are exempted from the license *because* you run the job. Work you do not supervise yourself must be performed by licensed contractors.

The 24-month rule — one sale poisons the next build

"However, if, under this subsection, the person or his or her family, firm, or corporation has previously sold or transferred a building or structure which had been constructed by such person acting without a licensed residential or general contractor within the prior 24 month period, starting from the date on which a certificate of occupancy was issued for such building or structure, then such person may not, under this subsection, construct another separate building or structure ..." — and the statute goes on to presume that the new building was never intended solely for your own occupancy.

Three details people get wrong. First, the clock runs from the **certificate of occupancy of the structure you sold** — not from its sale date. Second, it reaches sales by your **family, firm, or corporation**, not just you. Third, it is both a bar ("may not ... construct another") and an **intent presumption** that reaches backward: a quick sale is evidence you never qualified. Keep every CO you are ever issued.

O.C.G.A. § 43-41-17(h). The closing presumption is condensed here — read the full sentence at the statute before you rely on its exact reach.

NO DELEGATION — AND THE CODES STILL BIND YOU

Two more sentences of § 43-41-17(h) close the loopholes people go looking for. On handing the job to someone else: *"Further, such person may not delegate the responsibility to directly supervise and manage all or any part of the work relating thereto to any other person unless that person is licensed under this chapter and the work being performed is within the scope of that person's license."* Your unlicensed brother-in-law cannot run the job for you — on paper or in fact.

And on the idea that no license means no rules: *"In any event, however, all such work must be done in conformity with ... any applicable county or municipal resolutions, ordinances, codes, permitting, or inspection requirements."* The exemption removes the license, not the building code — even in a county that enforces nothing (§ 8-2-25(a) makes the eight state minimum codes statewide; see GA.2 and GA.3).

O.C.G.A. § 43-41-17(h); § 8-2-25(a).

WHAT YOU SIGN — USUALLY A COUNTY FORM, NEVER A STATE ONE

Unlike several neighboring states, § 43-41-17(h) contains **no affidavit or disclosure requirement** — the statutory text carries no form, no oath, and no filing. That absence was verified against the statute text in August 2026. What fills the gap is local practice: many Georgia counties require a **notarized owner-builder affidavit** of their own design at permit application, and some add a homeowner disclaimer form for each trade permit. Neither is a state requirement; both are real requirements where they exist. Ask your permit office and record the answer:

County affidavit required? Y / N — form name: _____ Notary needed: _____

Statutory absence: O.C.G.A. § 43-41-17(h), read in full. County practice varies and is not cited to any statute — that is the point; get your county's answer in writing.

HIRING HELP — WHO MAY LAWFULLY CONTRACT WITH YOU

Because licensure attaches at \$2,500, nearly every sub you hire is either licensed or breaking the law. The chapter leaves you three clean lanes:

- **Licensed residential contractors** — for anything, at any value.
- **Chapter 14 trade licensees** — electrical, plumbing, conditioned air, low-voltage, and utility contractors may contract directly with you: *"nothing in this chapter shall preclude a person licensed under Chapter 14 of this title ... from offering to perform, performing, engaging in, or contracting to engage in the performance of construction work or services directly with an owner."* (§ 43-41-17(e))
- **Specialty contractors** — framing, roofing, tile, and similar single-trade outfits may contract directly with you for their trade, plus incidental other work capped at the greater of **\$10,000 or 25 percent** of the contract's total value at the time of contracting. (§ 43-41-17(f))

O.C.G.A. § 43-41-17(e), (f). Subsection letters read from the statute's structure listing — two extractions agree, but confirm the letters at the official code if you ever cite them in a dispute.

Why you verify every license — the contract is void without one

"As a matter of public policy, any contract entered into on or after July 1, 2008, for the performance of work for which a residential contractor or general contractor license is required by this chapter ... and which is between an owner and a contractor who does not have a valid and current license required for such work ... shall be unenforceable in law or in equity by the unlicensed contractor." (§ 43-41-17(b))

That sounds like it only hurts the contractor. It hurts you too: a void contract voids its warranties in practice, and an unlicensed sub who walks off leaves you nothing to enforce. Verify every license before signing — contractor and trade licenses both check at sos.ga.gov.

O.C.G.A. § 43-41-17(b). A 2024 session law (SB 503) renamed "general contractor" to "commercial general contractor" throughout the chapter — older handouts and the mirror text this kit quotes predate the rename; the rule itself is unchanged.

The criminal side. Unlicensed contracting is a misdemeanor: on conviction, "a fine of not less than \$500.00 or imprisonment of three months, or both fine and imprisonment in the discretion of the court" — per offense. That is the club held over anyone you hire without a license, and over you if you build outside the exemption's conditions and keep contracting anyway.

O.C.G.A. § 43-41-12(a).

DOING YOUR OWN ELECTRICAL, PLUMBING, AND HVAC WORK

Georgia licenses the trades statewide — "No person shall engage in the electrical contracting business as an electrical contractor unless such person has a valid license from the Division of Electrical Contractors," with parallel commands for master and journeyman plumbers and for conditioned air contractors (§ 43-14-8(a)-(c)). But the same chapter hands the homeowner a complete carve-out:

The homeowner trade carve-out — § 43-14-13(d)

"This chapter shall not prohibit an individual from installing, altering, or repairing plumbing fixtures, air-conditioning and heating, air-conditioning and heating fixtures, utility systems, or electrical or low-voltage wiring services in a residential dwelling owned or occupied by such individual; provided, however, that all such work must be done in conformity with all other provisions of this chapter, the rules and regulations of the board, and any applicable county or municipal resolutions, ordinances, codes, or inspection requirements."

Read the scope before you celebrate. The carve-out is written for "an individual" working on a dwelling that individual owns or occupies — it authorizes **your own hands**, not an unlicensed helper working under you; anyone you hire for trade work must hold the § 43-14-8 license. The statute is silent on helpers, so treat that as the safe reading, not settled law. And

note the proviso: your self-performed work is still inspected to the trade codes (the state IPC, 2023 NEC, and IMC/IFGC — see GA.2) wherever your county inspects at all.

O.C.G.A. § 43-14-13(d), quoted in full; § 43-14-8(a)–(c). The helper-scope reading is guidance drawn from the exemption's wording, not quoted prohibition — the statute does not address helpers either way.

WORKERS' COMPENSATION — WHEN HIRED HELP CHANGES THINGS

Georgia's Workers' Compensation Act does not reach small employers: it does not apply "to any person, firm, or private corporation, including any public service corporation, that has regularly in service less than three employees in the same business within this state" (§ 34-9-2(a)(2)). An owner-builder who hires licensed subcontractors and regularly employs nobody is generally outside it.

Two cautions. First, hiring helpers **directly** — by the hour, rather than contracting with their company — can put you at three regular employees faster than you expect. Second, § 34-9-8 makes a "principal" contractor liable for the comp of an uninsured sub's workers; whether an owner-builder can be that principal is a fact-and-case-law question this kit will not answer for you. The cheap protection is the same either way: **collect a certificate of insurance from every sub before they start.**

O.C.G.A. § 34-9-2(a)(2), quoted; § 34-9-8 flagged, not resolved — if you will pay workers directly, get advice before you do.

QUALIFICATION CHECKLIST — WORK THIS BEFORE YOU APPLY

Every line below is a condition the statutes impose or a fact a permit counter (or a lender) will ask you to prove. Work down it with a pen. If you cannot check a box, resolve it before you file — not after.

Step 1 — Ownership and intent

	Item	Date	Notes / evidence
☐	Land is owned in your name (or your firm's) as of the application date Deed book/page: _____ Parcel ID: _____		
☐	The finished building is intended solely for use or occupancy by you and your family (or your firm and its employees) — not the general public		
☐	It is not offered for sale or lease, and no sale, lease, or listing is contemplated		
☐	Neither you nor your family, firm, or corporation has sold or transferred a self-built structure within the prior 24 months, measured from that structure's CO date Prior self-build CO date (if any): _____		

Step 1 — Ownership and intent

	Item	Date	Notes / evidence
☐	Your county's owner-builder affidavit requirement confirmed and recorded Required? Y/N: _____ Form: _____		

Step 2 — What you are taking on

	Item	Date	Notes / evidence
☐	You will personally provide direct supervision and management of all work not performed by licensed contractors — and will not delegate that role to anyone unlicensed		
☐	Every contractor you hire whose work exceeds \$2,500 holds the required Georgia license — verified at sos.ga.gov before signing Verified on: _____		
☐	Every electrical, plumbing, conditioned-air, low-voltage, or utility sub holds the Chapter 43-14 trade license — the homeowner carve-out covers your hands, not theirs		
☐	Certificate of insurance collected from every sub before work starts File location: _____		
☐	You understand the state minimum codes bind this project even if your county inspects nothing (§ 8-2-25(a); § 43-41-17(h))		

Step 3 — the paperwork itself (permit application, septic permit, Notice of Commencement, energy-test reports, and everything your county adds on top) is worked in **GA.2 Permit Application Checklist**, and each document is described in **GA.5 Forms & Documents Index**.

WHAT TAKES THE EXEMPTION AWAY

- Offering the home for **sale or lease** — the exemption is written for a building "not offered for sale or lease," full stop.
- A **prior sale within 24 months** of a self-built structure, measured from that structure's CO — by you or your family, firm, or corporation.
- Not owning the land the building sits on.

- Handing supervision and management to an unlicensed person while your name stays on the permit.
- Building for the general public's use, or for occupants beyond your family, firm, or corporation and its employees.

Consequences the statutes actually name: outside the exemption you are an unlicensed contractor — a **misdemeanor with a \$500 minimum fine per offense** (§ 43-41-12(a)) — and any contract you sign to build for others is **unenforceable** (§ 43-41-17(b)).

Sources — every Georgia claim in this document (verified August 2026)

What this document states	Authority
Owner exemption: own land, occupancy solely by you/family/firm, not the public, not for sale or lease; act as your own contractor	§ 43-41-17(h)
One-sale-per-24-months rule; clock runs from the sold structure's CO; intent presumption	§ 43-41-17(h)
No delegation of supervision except to licensees within scope; all work in conformity with codes and local requirements	§ 43-41-17(h)
No state affidavit appears in the exemption; county affidavits are local practice	§ 43-41-17(h) (absence verified)
Residential contractor licensure attaches where work exceeds \$2,500	§ 43-41-2(9)
Chapter 14 trade licensees and specialty contractors may contract directly with an owner; \$10,000/25% incidental cap	§ 43-41-17(e), (f)
Unlicensed contractor's contract unenforceable; unlicensed contracting a misdemeanor, \$500 minimum per offense	§ 43-41-17(b); § 43-41-12(a)
Trade licenses statewide; homeowner may self-perform trade work in own dwelling, subject to codes and inspection	§ 43-14-8(a)-(c); § 43-14-13(d)
Workers' comp does not reach employers with fewer than three regular employees	§ 34-9-2(a)(2)
Eight state minimum codes bind statewide without local adoption	§ 8-2-25(a)

Read any O.C.G.A. section cited above at **codes.findlaw.com/ga** — pattern: codes.findlaw.com/ga/title-43-professions-and-businesses/ga-code-sect-43-41-17/ with the title and section swapped in — or through the official O.C.G.A. portal linked from legis.ga.gov. Statute text was verified August 2026 against that mirror, whose stated currency was March 28, 2024; the 2024–2025 session laws (SB 503, HB 635, SB 125) postdate it. None is reported to change the owner-exemption text this kit quotes, but confirm exact wording at the official code before you rely on it.